Request #CITY-2026-198

*To the City of Sherwood FOIA Custodian: Pursuant to the Arkansas Freedom of Information Act, Ark. Code Ann. § 25-19-101 et seq., I request electronic copies of existing public records concerning the procurement, authorization, financing, and execution of the City of Sherwood's BRINC Drone as First Responder (DFR) program, including agreements involving BRINC, Motorola Solutions, and any participating reseller or contractor. This request concerns the procurement and financial authorization of the program, rather than its operational flight records. Publicly reported contract information describes a six-year arrangement with a first year at no subscription charge and approximately $79,999 annually for five subsequent years. The purpose of this request is to establish the actual contractual obligations, applicable purchasing authority, and documentation supporting the City's procurement decision. **1. Original Agreement and Contractual Obligations** Please provide: - The complete executed agreement for the BRINC DFR program, including all exhibits, schedules, statements of work, amendments, incorporated terms, and attachments. - All quotations, proposals, pricing schedules, purchase orders, subscription agreements, and financing documents associated with the agreement. - Documents specifying the agreement's effective date, commencement date, total term, and payment obligations. - All contractual provisions addressing cancellation, termination for convenience, early termination, automatic renewal, and nonrenewal. - Records identifying whether the City may terminate during the first year without incurring future subscription obligations, penalties, equipment charges, or other liabilities. - Records identifying ownership, return requirements, or disposition of equipment upon termination. **2. Contract Value and Financial Evaluation** Please provide existing financial analyses, memoranda, purchasing forms, approval documents, or other records identifying: - The total estimated or committed contract value. - The amount used by the City when determining applicable competitive-bidding*

*requirements. - Whether the City considered the entire multiyear term or only the initial year's expenditure. - The annual financial obligations associated with the agreement. - Any distinction between subscription, equipment, installation, integration, training, maintenance, and other program costs. - Any contingent obligations or future-year appropriation requirements. **3. Competitive Bidding and Procurement Authority** Please provide all existing records establishing the purchasing procedure used to authorize the program, including: - Competitive-bid advertisements, solicitations, requests for proposals, responses, evaluations, and award recommendations, if applicable. - Records identifying the legal authority relied upon if competitive bids were not solicited. - Any sole-source or single-source justification, exclusivity documentation, and written proclamation issued under Ark. Code Ann. § 14-58-104(a)(21). - Any City Council resolution waiving competitive bidding under Ark. Code Ann. § 14-58-303(b)(2)(B). - Records documenting reliance on cooperative or governmental purchasing arrangements under Ark. Code Ann. § 14-58-104(a)(20). - Any procurement contract, government purchasing schedule, cooperative agreement, or authorization relied upon for such an arrangement. - Records identifying the purchasing threshold used by the City when the agreement was approved. **4. City Council and Administrative Approval** Please provide: - City Council resolutions, ordinances, agenda packets, supporting materials, meeting presentations, or written recommendations concerning authorization of the BRINC DFR agreement. - Any records documenting approval by the Mayor, Finance Department, purchasing officials, Police Department, or other city personnel. - Contract approval and routing forms, signature authorizations, and written recommendations supporting execution. - Records identifying the official or officials responsible for reviewing the agreement's procurement classification and total financial obligations. - Any nonexempt legal or purchasing guidance relied upon in determining whether competitive bidding was required. **5. Free Trial and Cancellation Representations** Please provide existing correspondence, proposals, memoranda, presentations, and other documents concerning the agreement's description as a free trial, pilot program, demonstration, or evaluation period. This includes records discussing: - The length and conditions of the trial or evaluation period. - Whether the arrangement was considered a new procurement or an evaluation preceding a future purchase. - The deadline and*

*procedure for terminating before subscription charges begin. - Any conditions requiring the City to continue the agreement after the introductory period. - Whether future payments become obligatory unless the City affirmatively cancels. - Any differences between representations made during program discussions and the executed contractual terms. **6. Installation, Integration, and Additional Costs** Please provide purchase orders, contracts, invoices, estimates, and payment authorizations for costs associated with deployment of the BRINC system, including: - Rooftop or building modifications. - Electrical installation and infrastructure. - Dock installation. - Computer-aided dispatch integration. - Communications, connectivity, and other necessary supporting services. - Equipment, training, accessories, or maintenance not included in the base subscription. Please include existing records identifying whether these expenses were included in the original procurement evaluation or authorized separately. **7. Procurement Communications** Please provide communications between City purchasing or finance personnel, the Mayor's Office, Police Department command staff, City Attorney's Office, BRINC, Motorola Solutions, and any participating reseller concerning: - Contract term and total value. - Competitive bidding or procurement exemptions. - Sole-source purchasing. - Cooperative purchasing. - Free-trial arrangements. - Cancellation provisions. - City Council approval or purchasing authorization. This request is limited to communications materially concerning procurement, contract execution, purchasing approval, or financial obligations. **Date Range** January 1, 2025, through the date this request is received, together with any earlier agreements or procurement records incorporated into or relied upon for the current arrangement. **Production and Response** Please produce records electronically in their existing native or ordinary export formats where reasonably available, including PDFs, spreadsheets, and complete responsive email chains with attachments. If responsive documents were previously produced under another FOIA request, an exact document identification and accessible link are acceptable. Please provide revisions, attachments, or additional records not previously produced. If records are held by the Mayor's Office, Finance Department, City Clerk, Police Department, or another municipal office, please coordinate the search with the appropriate custodian. For each numbered category, please identify whether records are produced, no responsive records*

were located, or records are withheld under an identified statutory exemption. Please release reasonably segregable nonexempt portions of records and identify the statutory basis for any withholding. Rolling production is requested as records become available. Please advise of any applicable copying charges before incurring them. This request seeks existing records. It does not require the City to create a new legal analysis, financial calculation, or written explanation. Thank you for your assistance. Arkansas Accountability Project arkansasaccountabilityproject.org

Details

Submitted
Tue, Oct 20, 2026

Status
Submitted

Requested Documents

Folder Location	File	Description	Size	Upload Da
No documents have been added				

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